

CODE OF REGULATIONS
OF
WALNUT HILLS INSTRUMENTALISTS' PARENTS, INC.

Walnut Hills Instrumentalists' Parents, Inc. ("WHIP" or "the Corporation") is organized exclusively for charitable and educational purposes within the meaning of Section 501(c)(3). The Corporation shall not seek to direct or control the administrative or instructional activities of the school.

Article I – Statement of Purpose and Objectives

To provide the students in the Music Department at Walnut Hills High School with a broad and challenging performance arts experience, the Corporation shall have the following purposes:

1. To develop and promote a Music Department of sufficient size and quality to secure for the students of Walnut Hills High School the opportunity for attaining the highest level of education, experience, and participation.
2. To maintain by all proper means the continuity of such department.
3. To promote support for the Music Department of Walnut Hills High School by parents and guardians of students participating in the program.

Article II – Membership

- A. All parents and guardians of present and past students enrolled in the Music Department programs at Walnut Hills High School are members of the Corporation.
- B. No dues are required for membership.
- C. Parents and guardians of current Music Department students shall be voting members. All other members shall be non-voting members; except for Honorary Trustees (Article IV, Paragraph B) which are elected to an Officer position (Article VI).
- D. A Student Representative as designated by the Music Department Chairs. The designee is intended to be the President of the Tri-M Honor Society.

Article III – Meeting of Members

- A. Regular meetings of the membership shall be held at least four times during each school year, including an annual meeting to be held in April or May of each school year.
- B. Notice of all meetings shall not be mailed to the members but rather shall be given by publication in the Walnut Hills High School calendar, and also may be, but are not required to be, included in other school publications, such as the Parent Board newsletter, in programs or public announcements at school concerts or other means reasonably determined by the Trustees.
- C. The order of business at all meetings of members shall generally be as follows:
 1. Meeting is called to order
 2. Quorum is determined
 3. Vote to approve minutes (distributed via email)

4. Treasurer's report
 5. Committees' reports
 6. Unfinished business
 7. New business
 8. Adjournment
- D. The April or May meeting of the members shall constitute the annual meeting of the members as declared by the Executive Committee. In addition to the regular order of business at meetings of the members, at the annual meeting the members shall elect Trustees and officers of the Corporation in accordance with these regulations, and such other business shall be conducted, and reports shall be given as may be determined by the Trustees prior to the meeting.
- E. Special meetings of the members may be called by resolution of the Trustees. Calls for special meetings of the members shall specify the time, place, and object of the meeting.
- F. The President or designee of the President plus half of the Trustees shall constitute a quorum for such membership meeting, and the affirmative vote of a majority of the voting members present at any meeting at which a quorum is present shall be necessary for the authorization or taking of any action voted upon by the members.

Article IV – Trustees

- A. The affairs of the Corporation shall be managed by a Board of Trustees. There shall be no more than ten Trustees, but no less than four Trustees. A good faith effort will be made to ensure members of the Board of Trustees represent band, choir and orchestra. Trustees shall be elected by the voting members at the annual meeting, and at each such election of Trustees the candidates receiving the greatest number of votes shall be elected. Each trustee must be a voting member of the Corporation.
- B. Honorary Trustees may be selected by the Board from time to time as the Board deems appropriate. Honorary Trustees shall receive notice of all meetings of the Board and may serve on committees and attend all meetings of the Board and participate therein, but they shall have no right to vote; with the exception of Honorary Trustees which are elected to an Officer position (Article VI).
- C. Each Trustee shall serve a two-year term. Every effort will be made for at least one Trustee to return for the following fiscal year. In the absence of another candidate for any Trustee position, the Board may vote to approve a one-year extension for said Trustee.
- D. Removal of Trustees and filling of vacancies shall be accomplished in the manner provided by Section 1702.29 of the Revised Code of Ohio.
- E. Meetings of the Trustees may be called by any officer or by any three Trustees and may be held at any time within or outside the State of Ohio. Notice of the time and place of each meeting of the Trustees shall be given to each Trustee at least two days before the meeting. At least one half of the number of Trustees plus the President of the Corporation or his/her designated representative shall be necessary to constitute a quorum for all meetings of Trustees, except that a majority of the Trustees in office constitutes a quorum for filling a vacancy in the board. The act of a majority of the Trustees present at a meeting at which a quorum is present shall be the act of the Board of Trustees.

- F. Each fiscal year, Trustees shall disclose any conflict of interest via the “Conflict of Interest Disclosure Statement” and abstain from votes where such a conflict exists.

Article V – Committees

- A. The Standing Committees of the Corporation shall be the Executive Committee, Fundraising, Volunteer, Outreach, and such other Standing Committees or ad hoc committees as the Board or President may constitute from time to time.
- B. The Executive Committee shall consist of the officers of the Corporation and such other persons appointed by the President as shall be necessary or appropriate. The Committee shall be empowered to act in the name of the Corporation between regular meetings of the Board of Trustees. The Chairperson of the Committee shall be the President of the Corporation, who may appoint a Co-Chairperson. The Chairperson or Co-Chairperson shall report at each regular meeting of the Board of action taken by the Committee since the last meeting of the Board. Written minutes of each Executive Committee meeting shall be kept, and such minutes shall either be mailed to each Board member, or distributed at the next following, regular Board meeting.
- C. The Executive Committee shall set forth in writing the specific objectives and roles and responsibilities for each Standing Committee in order to establish the operating guidelines for each. The Executive Committee shall set forth the same guidelines for any ad hoc committee formed pursuant to Paragraph A of this article.

Article VI – Officers

- A. The officers of the Corporation shall consist of the President, the Vice President, the Recording Secretary, and the Treasurer. Each officer shall be a Trustee, and no person shall hold more than one office, unless otherwise approved by majority vote of the Trustees.
- B. The President shall preside over all meetings of the Board of Trustees, the Executive Committee and the membership. He/she shall be a member, ex-officio, of all committees. He/she shall be the official representative of the Corporation in all dealings with the Walnut Hills High School Music Department, the administration, and the Cincinnati Board of Education and shall perform such other duties as may be reasonably required of him from time to time by the Board of Trustees. The President and the Executive Committee shall appoint the Chairperson and members of all Standing Committees. The President and his/her designees shall meet with the Executive Director of the Walnut Hills High School Alumni Foundation annually to review budget needs.
- C. The Vice President shall perform such duties as may be required by the Board of Trustees. In the absence or disability of the President, the Vice President shall perform the duties of the President.
- D. The Recording Secretary shall record the minutes of the meetings of the membership, of the Executive Committee, and of the Board of Trustees, and shall perform such other duties as may be required by the Board of Trustees. In the absence or disability of the President and the Vice President, the Secretary shall perform the duties of the President.
- E. The Treasurer shall have overall responsibility for the financial affairs of the Corporation, and shall present, or have presented, to the Board of Trustees at each regular meeting and at the annual meeting, a statement showing the financial status of the Corporation. The Treasurer will

arrange insurance to protect the Corporation against financial losses from theft, embezzlement or fraud (at a minimum). He/she shall perform banking duties as required and will oversee all work of a Bookkeeper should one be in place. He/she shall draw all checks upon accounts of the Corporation, but only as authorized or approved by the Board of Trustees or by the Executive Committee. He/she shall maintain the financial records of the Corporation. Further, the Treasurer shall work with the Music Directors to prepare an annual budget and submit the same to the Executive Committee for approval.

- F. The Board may appoint additional officers who need not be Trustees to perform such duties as the Board may determine, to serve at the pleasure of the Board.
- G. Each officer shall be elected for a term of two years at the annual meeting and shall hold office until his successor shall be duly elected or until his earlier resignation or removal from office or death. One candidate for each office shall be nominated by the out-going Executive Committee. The current Vice President shall be the Executive Committee nominee for President unless otherwise determined by a majority vote of the Trustees. Additional nominations for officers shall be accepted if made in writing to the Executive Committee at least 30 days in advance of the annual meeting. The list of candidates shall be provided to the Trustees and members at least two days before the annual meeting. Any officer may be removed by the vote of a majority of the Trustees in office. The Trustees may fill any vacancies in any office occurring for whatever reason by a majority vote of the Trustees.

Article VII – Amendments

These regulations may be adopted, amended or repealed by the vote of two-thirds of the voting members present at any regular or specially convened meeting of the membership of the Corporation at which a quorum is present, provided that the notice of any proposed amendment shall be sent to the Trustees not less than ten days prior to the holding of the meeting at which such change or addition is to be acted on.

Article VIII – Faculty and Staff Participation in WHIP

Faculty and staff members of the Music Department of Walnut Hills High School shall be non-voting members of the Corporation and shall have the right to participate, ex-officio on all committees. It shall be the responsibility of committee chairpersons to solicit participation of faculty and staff in committee affairs. Faculty and staff members shall solicit assistance for departmental affairs through the Executive Committee either in writing as needed or at regular meetings of the membership. Faculty and staff members shall retain full responsibility for student participation in any school-related activities.

Article IX – Indemnification of Trustees and Officers

The Corporation shall indemnify, defend and hold harmless each Trustee and officer, and each former Trustee and Officer of the Corporation from personal liability arising out of, or related to their service to the Corporation to the fullest extent permitted by the laws of the State of Ohio in the event that any such person shall be made or be threatened to be made, a party to any action, suit, or proceeding whether criminal, civil, administrative, or investigative. As used in this document, the terms Trustee and Officer shall include their heirs and personal representatives.

Article X – Disillusion Clause

Upon dissolution, after paying or providing for debts, all remaining assets shall be distributed to the Walnut Hills High School Music Department or a 501(c)(3) supporting music education.